

HOUSE BILL 1005

By Hakeem

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to student discipline.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 34, is amended by adding the following as a new section:

(a) Notwithstanding § 49-6-3401, an LEA or public charter school shall not suspend or expel a student from school if the student is enrolled in any of the grades pre-kindergarten through two (pre-K-2) unless the student's behavior endangers the physical safety of other students or school personnel, as determined by the LEA's director of schools or the director of the public charter school, as applicable.

(b) If the behavior of a student enrolled in the LEA or public charter school in any of the grades pre-kindergarten through two (pre-K-2) endangers the physical safety of other students or school personnel, as determined by the LEA's director of schools or the director of the public charter school, as applicable, then the student may be suspended for no more than three (3) days.

(c)

(1) Before a student is suspended pursuant to subsection (b), the student must be provided an opportunity for the student's anger, fear, or anxiety to subside and for the student's teacher, principal, school counselor, or school psychologist to have a conversation with the student and the student's parent or legal guardian concerning the student's behavior and any underlying issues that may have precipitated the student's behavior.

(2) The principal of the student's school shall notify the student's parent or legal guardian of the student's suspension on the day the suspension occurs.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.